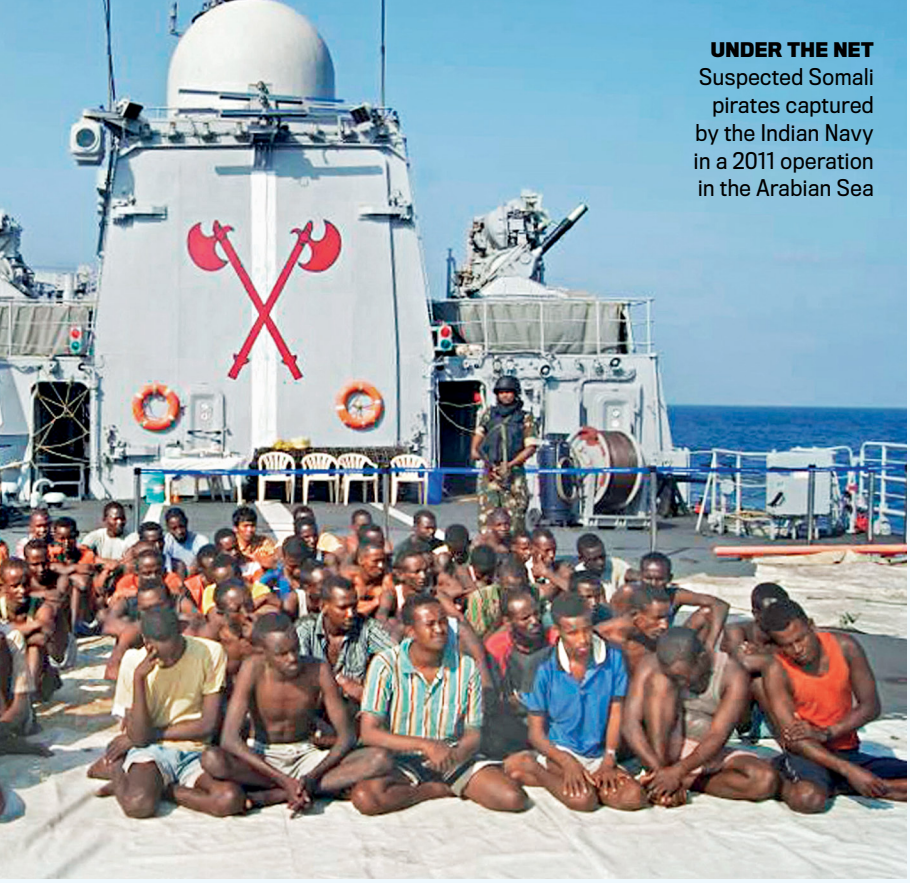


UNDER THE NET Suspected Somali pirates captured by the Indian Navy in a 2011 operation in the Arabian Sea

AFP

MARITIME LAW

LEGAL CHAIN FOR PIRATES

December 9, 2019, and referred it to the standing committee on external affairs. External affairs Mminister S. Jaishankar, who moved the bill now, told Parliament that out of 18 recommendations of the standing committee, 14 have been incorporated in the bill.

The problem of piracy is as old as the history of maritime navigation. However, with the rapid growth in international sea trade, piracy has proliferated at an alarming pace in recent decades. India is actively engaged in anti-piracy operations in the Gulf of Aden and the eastern Arabian Sea. The Indian navy commenced anti-piracy patrols in the Gulf of Aden in October 2008; since then a ship has been deployed there permanently. Besides escorting Indian-flagged vessels, ships from other nations have been provided protection. No ship under Indian escort has thus far been hijacked by pirates.

Jaishankar claimed the bill will strengthen India's maritime security and give it an effective legal instrument to combat the scourge of piracy. Since over 90 per cent of India's trade takes place by sea routes and over 80 per cent of the country's hydrocarbon requirements is sea-borne, security of these lanes of communication is critical. With India providing around 9.35 per cent of global seafarers, ranking third in the list of nations with most seafarers in the world maritime industry, piracy is a particular danger for over 200,000 Indian sailors and mariners. While debating the bill, Jaishankar said that between 2008 and 2011, there were 27 maritime incidents, affecting 288 Indians. "Between 2014 and 2022, there were 19 piracy cases in which 155 Indian crew members were involved. The numbers show why the country needs this bill so badly," he added. Jaishankar said the bill would enable India to fulfil its international obligations, especially under the United Nations Convention on the Law of the Sea (UNCLOS), to which it is a signatory.

THE NEW ANTI-PIRACY BILL ALLOWS FOR COMBATING PIRATES IN THE HIGH SEAS AS WELL AS IN INDIA'S EEZ

Crucially, the Anti-Maritime Piracy Bill enables Indian authorities to take action against piracy on the high seas. It also applies to the sea beyond India's Exclusive Economic Zone (EEZ)—an area beyond and adjacent to the territorial waters that can be used for the exploration/ exploitation of marine resources—which is 200 nautical miles from India's coastline. The bill defines piracy as any illegal act of violence, detention or destruction against a ship, aircraft, person or property by the crew or passengers of a private ship or aircraft. Piracy also includes facilitating such acts of violence and voluntarily participating in the operation of a pirate ship or aircraft.

The bill provides for a maximum punishment of life imprisonment or fine or both, for anyone proven guilty of piracy. There is a provision of the death penalty—to be applied in the rarest of rare cases—if any person is found to have caused somebody's death or attempts to cause somebody's death while committing an act of piracy. An attempt at piracy or helping someone to commit piracy is punishable with a jail term of up to 10 years. Participating, organising, or directing others to participate in piracy will be punishable with up to 14 years of jail, a fine, or both.

While confronting pirates on the high seas, there is always a chance of collateral damage, with hostages being taken by pirates in many cases. So, the bill has granted some immunity to uniformed security forces involved in an operation. Vijay Digambar Chafekar, additional director general (retd) of the Indian Coast Guard, says all successful anti-piracy operations of the Indian navy and Coast Guard occurred within the EEZ and that the bill has the provision to take action against pirates there now. It was a longstanding demand of the Coast Guard, he adds. ■